

ordered to ***meet and confer in person, or via phone or videoconference*** with Plaintiff regarding for the purpose of determining whether an agreement can be reached that would resolve the objections raised in the demurrer. As part of the meet-and-confer process, Defendant shall identify the specific causes of action that it believes are subject to demurrer and identify with legal support the basis of the deficiencies. Plaintiff shall provide legal support for their position that the pleading is legally sufficient or, in the alternative, how the complaint may be amended to cure any legal insufficiency.

After meeting and conferring, Defendant shall 15 days before the continued hearing date set above do one of the following:

- (1) vacate the hearing on the demurrer, and file an Answer;
- (2) file with the court a declaration stating the parties have agreed that Plaintiff will file a stipulation and amended complaint before the date set forth above; or
- (3) file with the court a declaration stating the means by which the parties met and conferred and identifying the specific objections in the demurrer and supporting memorandum of points and authorities that the parties were unable to resolve. (Code Civ. Proc., § 430.41(a)(3).)

No further briefing is permitted.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2507291	GONZALEZ vs COUNTY OF RIVERSIDE	DEMURRER ON COMPLAINT

Tentative Ruling:

Meet and Confer

Before filing a demurrer, the moving party shall meet and confer, at least 5 days before a responsive pleading is due, in person, by telephone, or video conference, with the party who filed the pleading for purposes of seeing if a resolution can be had to the objections raised in the demurrer motion. (Code Civ. Proc., §§410.41, subd. (a), 435, subds. (a)(1)-(2), emphasis added.) The demurring party must file a declaration stating the means by which the parties met and conferred, or the responding party failed to respond or meet and confer in good faith. (Code Civ. Proc., §430.41, subd. (a)(3), emphasis added.) It is unclear if the parties complied. Though email was exchanged, defense counsel's declaration fails to state whether the parties met and conferred in person, via telephone, or video conference. (Hogoboom Decl., ¶¶4-5.) Of note, on June 4, 2026, this Court set an OSC re: Failure to Meet and Confer for the same defective declaration.

The Court will rule on the demurrer to move the case forward.

Merits – Statute of Limitations – NIED

Defendants contend the NIED claim is time-barred under Code of Civil Procedure section 340.5 because Plaintiffs initiated this suit two and a half years after the claim accrued by July 9, 2023. Defendants argue the FAC does not allege facts sufficient to invoke equitable tolling. Plaintiff maintains the FAC alleges facts to establish equitable tolling, citing *Addison v. State of California* (1978) 21 Cal.3d 313, 319.

A demurrer based on a statute of limitations defense must clearly and affirmatively show that the claim is barred. (*Lockley v. Law Office of Cantrell, Green, Kekich, Cruz & McCort* (2001) 91 Cal.App.4th 875, 881.) “It is not sufficient that the complaint might be barred.” (*Roman v. County of Los Angeles* (2000) 85 Cal.App.4th 316, 324.) “To determine the statute of limitations which applies to a cause of action it is necessary to identify the nature of the cause of action, i.e., the “gravamen” of the cause of action. [Citations.] “[T]he nature of the right sued upon and not the form of action nor the relief demanded determines the applicability of the statute of limitations under our code.” (*Hensler v. City of Glendale* (1994) 8 Cal.4th 1, 22-23.)

Code of Civil Procedure section 340.5 governs any claim against a health care provider for the injury or death of a person due to the health care provider’s alleged professional negligence. Section 340.5 creates two separate statutes of limitations, both of which must be met. (*Rose v. Fife* (1989) 207 Cal.App.3d 760, 767-768; see also *Ashworth v. Memorial Hospital* (1988) 206 Cal.App.3d 1046, 1054.) A plaintiff must file his or her Complaint “three years after the date of injury or one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered the injury, whichever occurs first.” (Code Civ. Proc., § 340.5; *Ashworth, supra*, 206 Cal.App.3d at 1054.) “Injury” under this statute means both a “person’s physical condition and its negligent cause. [Citation.]” (*Davis v. Marin* (2000) 80 Cal.App.4th 380, 385.) The one-year statute of limitation period commences when the plaintiff is aware of his/her harm as well as the negligent cause of that harm. (*Rose, supra*, 207 Cal.App.3d at 768; *Hills v. Aronsohn* (1984) 152 Cal.App.3d 753, 759; *Dolan v. Borelli* (1993) 13 Cal.App.4th 816, 823.)

Here, the FAC alleges Minor was born on July 9, 2022, and Gonzalez is Minor’s mother. (FAC ¶¶14, 24.) Both were under Defendants’ care during Minor’s birth. (*Id.* at ¶24.) As a result of Defendants’ negligent delivery and labor of Minor that caused Minor injuries (*id.* at ¶¶16-19, 23), Gonzalez suffered serious emotional distress, which was reasonably foreseeable. (*Id.* at ¶¶23, 26-28, 31.) Based on the foregoing allegations, the one-year deadline to file the instant lawsuit was July 9, 2023. Because the Complaint was filed on December 29, 2025, it is time-barred under Code of Civil Procedure section 340.5. (*Rose, supra*, 207 Cal.App.3d at 768.)

Equitable Tolling. Equitable tolling is a “judicially created, nonstatutory doctrine that suspend[s] or extend[s] a statute of limitations as necessary to ensure fundamental practicality and fairness. The doctrine applies occasionally and in special situations to

soften the harsh impact of technical rules which might otherwise prevent a good faith litigant from having a day in court.” (*Saint Francis Mem. Hosp. v. State Dept. of Pub. Health* (2020) 9 Cal.5th 710, 719; see *California State Univ., Fresno Ass’n, Inc. v. County of Fresno* (2017) 9 Cal.App.5th 250, 268-269.) “Courts draw authority to toll a filing deadline from their inherent equitable powers – not from what the Legislature has declared in any particular statute.” (*Wolstoncroft v. County of Yolo* (2021) 68 Cal.App.5th 327, 339.) Equitable tolling has been applied when an earlier lawsuit is filed in the wrong court or tribunal. (*Friends of Mammoth v. Board of Supervisors* (1972) 8 Cal.3d 247, 269; *Electronic Equipment Express, Inc. v. Donald H. Seiler & Co.* (1981) 122 Cal.App.3d 834, 847, fn. 3.)

In the present case, the FAC alleges that on May 18, 2023, Plaintiffs timely filed a Complaint in Riverside County, Case No. CVRI2302614 (“First Lawsuit”) against the same Defendants named in the instant lawsuit. (FAC ¶¶35-36.) During discovery, Plaintiff retained a pediatric neurologist who concluded that the true nature and extent of Minor’s cognitive and neuro-developmental impairments could not be assessed accurately until the age of four at the earliest. (*Id.* at ¶¶39-40.) Plaintiff, in good faith, discussed with defense counsel the need for additional time to allow minor to develop before being able to conduct further investigation into Minor’s injuries. (*Id.* at ¶41.) The parties submitted their first request ever to continue trial from August 1, 2025 to May 1, 2026 when Minor would be almost 4 years old, but the trial court would only continue trial to September 12, 2025. (*Id.* at ¶¶41-42.) “Following good-faith discussions with defense counsel, a stipulation was prepared to allow Plaintiffs to dismiss the case without prejudice, but allow Vanessa’s claim for emotional distress to be re-filed with [Minor’s] claim without being subject to a statute of limitations defense for Vanessa’s claim...Plaintiffs’ counsel agreed to limit Vanessa’s claim for non-economic damages to the MICRA limits in effect in 2025. However, Defendants later refused to execute the stipulation.” (*Id.* at ¶46.) Thereafter, Plaintiffs dismissed the First Lawsuit, without prejudice, and filed the instant lawsuit on December 29, 2025. (*Id.* at ¶¶48-49.) The elements for application of the doctrine of equitable tolling requires timely notice, lack of prejudice to the defendant, and reasonable and good faith conduct on the part of the plaintiff. (*Addison, supra*, 21 Cal.3d at 319.) Defendants received timely notice given discussions were had regarding Plaintiffs dismissing the First Lawsuit without prejudice to allow Plaintiffs’ claims to be re-filed. Indeed, a stipulation was discussed. As to prejudice and Plaintiffs’ good faith conduct, Defendants fail to explain how it will actually be prejudiced by the Court applying the doctrine of equitable tolling and how Plaintiffs acted in bad faith. The FAC alleges Plaintiff acted in good faith. (FAC ¶46.) Where the facts alleged in the cause of action show the action to be barred by the statute of limitations, “plaintiff must ‘plead around’ the defense, by alleging specific facts that would avoid the apparent defense. Absent such allegations, the complaint is subject to demurrer for failure to state a cause of action.” (Weil & Brown, California Practice Guide: Civil Procedure Before Trial (The Rutter Group) ¶ 6:179, pgs. 6-55.)

Here, the FAC sufficiently pleads facts around the defense of the statute of limitations. Accordingly, the Court overrules the demurrer.